
Type:	C – Institutional (Board)	Last Approved: May 23, 2024
Executive Responsibility:	President	Next Review:
Administrative Responsibility:	Associate Vice-President, Human Resources and Associate Vice-President, Student Affairs	Procedure: 41.17.001

1. STATEMENT:

Vancouver Island University (VIU) is committed to providing and maintaining a safe and respectful learning, working and living environment for **Members of the University community**. As part of this commitment, **Sexualized violence and misconduct** are prohibited. Members of the University community are encouraged to make a **Disclosure** and/or **Report** sexualized violence and/or misconduct, and the University commits to responding using a **Trauma-informed care** approach.

The Government of BC introduced the Sexual Violence and Misconduct Policy Act S.B.C. c.23 (the Act) in 2016. The Act requires BC post-secondary institutions to establish, implement, and make publicly available a policy, with associated procedures, that addresses **Sexual Misconduct**, its prevention, and responses to sexual misconduct. This Policy has been designed to comply with the Act and to support VIU's objectives to establish a safe and respectful learning, living and working environment. VIU will review the policy every three years as per the Act.

2. SCOPE AND APPLICATION:

This policy applies to members of the VIU community, as defined in this policy.

The policy applies to activities on all university campuses and properties and at any university event on or off campus, whether in person or virtual that impacts the learning, living and working environment for members of the University community.

Any **Student** may make a Report of a policy violation at any time they are a currently enrolled student and within one semester beyond the last semester in which they are currently enrolled. Depending on circumstances assessed on a case-by-case basis, these timelines may be extended.

Any **Employee** may make a Report of a policy violation at any time that they are employed by the University. Depending on circumstances assessed on a case-by-case basis, these timelines may be extended.

VIU is committed to providing support and resources to anyone who makes a disclosure related to Sexualized Violence and Misconduct outside of the policy's scope.

VIU may initiate an investigation without a Report if there is a significant risk of harm that impacts the learning, living and working environment of the University community.

University processes under this policy or associated procedure may be suspended when external proceedings, such as criminal or civil actions are underway. If an investigation is suspended the university will continue to provide appropriate support to members of the university community as described in this policy.

VIU may proceed with an Investigation while the incident is also being investigated by the police. The process under this Policy may occur simultaneously, prior to, or following any criminal, civil, employment or other proceeding.

Making a Report found to be vexatious, malicious, or in bad faith violates this policy.

2.1 Jurisdiction

This Policy and the associated Procedure apply to Members of the VIU Community and to risks, threats and incidents of Sexualized Violence and Misconduct that affect the working, learning, or living environment at VIU.

3. PRINCIPLES AND COMMITMENTS:

- VIU recognizes that individuals of all gender identities, gender expressions, and sexual orientations may experience Sexualized Violence and Misconduct.
- VIU recognizes that Sexual Misconduct is overwhelmingly committed against women, particularly women who experience multiple intersections of disadvantage such as, but not limited to, Indigenous women, women with disabilities, and racialized women. VIU also recognizes that those whose gender identities, gender expressions, or sexuality have been marginalized, and people with disabilities are also at heightened risk of experiencing Sexual Misconduct.
- Confidentiality is integral to creating an environment where individuals feel safe disclosing or reporting incidents of sexual misconduct and seeking support. VIU will keep information confidential to the extent possible and will act in accordance with British Columbia's *Freedom of Information and Protection of Privacy Act* ("FIPPA").
- VIU is committed to providing comprehensive and inclusive Sexual Misconduct prevention initiatives for Members of the VIU Community, including education and awareness programs, safety measures and campus communications.
- VIU is committed to identifying and responding to barriers to making a Disclosure or Report
- VIU is committed to offering and providing support and resources to Members of the VIU Community who make a Disclosure or Report as a **Complainant**.
- VIU is committed to offering and providing support and resources to Members of the VIU Community who are named as a **Respondent**.
- VIU is committed to supporting Members of the VIU Community who receive a Disclosure of Sexualized Violence and Misconduct.
- VIU is committed to supporting the personal agency of those who have experienced Sexual Misconduct by respecting their right to make their own decisions. Personal agency means that an individual is the decision-maker about making a Disclosure and/or Report, pursuing external processes such as criminal or civil action and accessing support services, including **Accommodations**.
- VIU will respond to and address Disclosures and Reports and conduct investigations of Reports in a timely manner.

- VIU is committed to **Procedural Fairness** when responding to Disclosures and Reports and conducting investigations.
- VIU will ensure that individuals receiving, investigating and adjudicating Reports of Sexual Misconduct have adequate training and competency to understand sexualized violence, and fundamentals of Trauma-informed practice.
- Any **Retaliation** or threat to retaliate against a complaint or respondent is prohibited.

4. ANNUAL REPORT:

On an annual basis, the President & Vice-Chancellor will report to the Board of Governors on the implementation of this Policy.

VIU will compile anonymized data related to Reports and will make this data available to the public annually.

5. TYPES OF SEXUALIZED VIOLENCE AND MISCONDUCT:

For the purposes of this Policy and the related Procedure:

- **coercion:** persistent pressure for sexual activity. Coercion is the use of a position of power, emotional manipulation, peer pressure, blackmail, threats to family, friends or pets, or the promise of rewards or special treatment, to persuade someone to do something they do not wish to do, such as engaging sexually or performing sexual acts. It may also involve pressuring someone to engage in sexual activity.
- **technology facilitated sexual harassment:** sexual harassment (defined below) conducted in whole or in part through electronic means, such as email, web postings, text messages, all forms of social media and other forms of electronic communication, transmission, or publication. May also be referred to as cyber sexual harassment.
- **technology facilitated sexual violence:** knowingly publishing, distributing, transmitting, selling, making available or advertising an intimate image of a person knowing that the person depicted in the image did not give their consent to that dissemination, or being reckless as to whether or not that person gave their consent to that dissemination. An intimate image includes, but is not limited to, a visual or audio recording made by any means, including a photographic, digital or video recording, in which a person is nude, partially nude, and/or engaged in sexual activity or making sexual utterances. May also be referred to as cyber sexualized violence.
- **indecent exposure:** deliberately exposing one's body causing another person to be alarmed, frightened, or offended.
- **sexual assault:** any form of sexual touching or the threat of sexual touching without the individual's consent.
- **sexual exploitation:** sexual abuse of children and youth under 18 years of age through the exchange of sex or sexual acts for drugs, food, shelter, protection, other basics of life, and/or money. Sexual exploitation includes involving children and youth in creating pornography, capturing images and sexually explicit websites.

- **sexual harassment:** vexatious comments and/or conduct that is sexual in nature, offensive, intimidating, or humiliating, and is known or ought to be known to be unwelcome. Sexual harassment also includes a reprisal or a threat of reprisal for the rejection of a sexual solicitation or advance.
- Examples of sexual harassment include, but are not limited to:
 - Demanding a hug, date or sexual contact
 - Unwanted touching
 - Use of derogatory language, sex- and/or gender-specific derogatory names, and/or comments related to a person's sexual appearance, characteristics or behaviour
 - Sexual jokes, including sexual jokes or offensive sexual material circulated by email
 - Spreading sexual rumours
 - Bragging about sexual prowess
 - Distributing and/or displaying sexually explicit images of self or others to a person who has not consented to being a recipient of the images
 - Unwanted questions about sexual history
- **Sexual Misconduct:** includes sexualized violence and refers to a wide range of unwanted acts – physical, verbal or psychological – carried out through sexual means or by targeting sexuality, gender identity or gender expression, that is attempted, threatened or committed against an individual without their consent.
- **Stalking:** behaviour that occurs on more than one occasion, which collectively instills fear in the person who has been victimized, or threatens a person's safety or mental health. These behaviours include non-consensual communications (face to face, phone, email, social media); threatening harm to the person being stalked and/or to family, friends, or pets; vandalizing property; showing up uninvited to the person's home or workplace or place of study; surveillance; and, sending unsolicited gifts.
- **voyeurism:** Secretly observing, in person or by mechanical or electronic means, a person in a context in which they have a reasonable expectation of privacy.
- Where referred to above, **"consent"** means voluntary and explicitly stated agreement to engage in an activity or to continue to engage in an activity. For clarity:
 - consent cannot be implied
 - consenting to one kind of sexual activity does not mean that consent is given for another sexual activity
 - consent applies only to each specific instance of sexual activity
 - it is the responsibility of the person initiating each sexual act to take positive steps to ensure consent before engaging in each sexual act
 - consent can be withdrawn by any participant at any point, regardless of prior consensual activity
 - there is no consent where a person is incapable of consenting, for example if the person is not of a legal age to consent or does not have the capacity to consent, such as due to intoxication or impairment
 - there is no consent where a person abuses a position of trust, power, or authority over another person
 - there is no consent where a person uses coercion or threat of violence.

- Intoxication of the person initiating sexual activity does not relieve the initiator of responsibility to ensure consent.

6. DEFINITIONS OF POLICY TERMS

- **Accommodation:** an academic or non-academic intervention which may include, but is not limited to, a safety plan; “no contact” directives; workplace accommodations such as workload adjustments, job reassignment, and/or leave of absence; class scheduling or class re-assignment; other academic accommodations such as extensions on assignments, deferrals and/or relocation of exams, withdrawal of courses; temporary or permanent adjustments to housing arrangements in VIU Residences; and other appropriate and reasonable interventions.
- **Complainant:** a Member of the VIU Community who makes a Report under this Policy.
- **Disclosure:** telling a Member of the VIU Community about an experience of Sexual Misconduct. A Disclosure does not initiate an Investigation. An individual may make a Disclosure to request personal support or Accommodation. Information about making a Disclosure is provided in section 2.3 of the related [Procedure 41.17.001](#).
- **Employee:** an individual who is employed by VIU, or who was an employee at the time of the incident.
- **Members of the VIU Community:** individuals who falls under one or more of the following categories:
 - enrolled in a VIU credit or non-credit course, or who was a VIU student at the time of the Sexual Misconduct;
 - employee of VIU;
 - holder of a teaching or research appointment at VIU;
 - VIU-authorized volunteer;
 - Visitor participating in a VIU-organized activity, or visitor on campus
 - Contractually required to abide by VIU policies.
- **Procedural Fairness:** the principle whereby the complainant and respondent have the right to a fair process including:
 - to know the full facts of the case;
 - the right to have matters addressed fairly and expeditiously;
 - the right to be heard;
 - to receive an impartial and unbiased decision; and
 - to be provided with a rationale for that decision.:

In addition, complainants and respondents have a right to have a support person and/or an advocate present during all stages of proceedings.

- **Report:** a request for VIU to take action which could include Accommodations and disciplinary measures in relation to the Respondent(s). Information about making a Report is provided in section 2.4 of the related [Procedure 41.17.001](#).

- **Respondent:** a Member of the VIU Community who is named in a Report under this Policy as having violated this Policy.
- **Retaliation:** threatening, intimidating or discriminating against someone who has made a disclosure or report, or who is providing evidence or assistance in complaint proceedings.
- **Sexualized violence and misconduct:** see Sexual Misconduct definition under section 5 *Types of Sexualized Violence and Misconduct*.
- **Student:** an individual who is enrolled in a VIU credit course or non-credit course, or who was a student at the time of the incident.
- **Trauma-informed care:** a process that ensures people receive the care they need based on the impact of previous experiences. It is a holistic approach to care, and can both prevent the individual from experiencing further trauma as well as help them recover from previous experiences.

7. RELATED VIU POLICIES AND DOCUMENTS:

[*Student Conduct Code 32.05*](#) and [*Procedure 32.05.001*](#) define Standards of Behaviour expected of all students enrolled at Vancouver Island University and articulate the scope of disciplinary action which may be taken in response to Student Conduct Code violations.

Disciplinary action toward students in relation to this Policy will be undertaken in accordance with *Student Conduct Code 32.05*.

[*Student Conduct Appeals 32.06*](#) and [*Procedure 32.06.001*](#) articulate the rights of students to appeal disciplinary action imposed by the University under *Student Conduct Code 32.05* and describes the process for appeal.

NOTE: Under the terms of their particular contracts, VIU student-athletes, Mariners coaches, and students living in VIU Residences may be subject to further action if it is determined that they violated this Policy.

BCGEU Local 702 Collective Agreement
CUPE Local 1858 Collective Agreement
VIUFA Collective Agreement